

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
ELIJAH STANLEY,

Plaintiff,

- against -

THE CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, POLICE OFFICER JAMES O'BRIEN
(TAX ID # 976308), POLICE OFFICER DENIZ ONUT
(TAX ID # 975912) and POLICE OFFICERS JOHN &
JANE DOES #1-10,

Defendants.
-----X

Index No.:

Date Purchased:

SUMMONS

Plaintiff designates Kings County
as the place of trial.

The basis of venue is:

Location of Occurrence:
I/F/O 1840 Nostrand Avenue
Brooklyn, NY 11210

To the above named Defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Brooklyn, New York
December 2, 2024

**LAW OFFICE OF
ALEXANDER STEPANKOVSKIY, PLLC**



ALEXANDER STEPANKOVSKIY, ESQ.

Attorney for Plaintiff

ELIJAH STANLEY

44 Court Street, Suite 1217
Brooklyn, New York 11201
(718) 223-5531

DEFENDANTS:

THE CITY OF NEW YORK

100 Church Street

New York, New York 10007

NEW YORK CITY POLICE DEPARTMENT C/O THE CITY OF NEW YORK

100 Church Street

New York, New York 10007

POLICE OFFICER JAMES O'BRIEN (TAX ID # 976308)

NEW YORK CITY POLICE DEPARTMENT C/O 67th PRECINCT

2820 Snyder Avenue

Brooklyn, NY 11226

POLICE OFFICER DENIZ ONUT (TAX ID # 975912)

NEW YORK CITY POLICE DEPARTMENT C/O 67th PRECINCT

2820 Snyder Avenue

Brooklyn, NY 11226

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
ELIJAH STANLEY,

Index No.:

Plaintiff,

VERIFIED COMPLAINT

- against -

THE CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, POLICE OFFICER JAMES O'BRIEN
(TAX ID # 976308), POLICE OFFICER DENIZ ONUT
(TAX ID # 975912) and POLICE OFFICERS JOHN &
JANE DOES #1-10,

Defendants.
-----X

Plaintiff, **ELIJAH STANLEY**, by his attorney, LAW OFFICE OF ALEXANDER
STEPANKOVSKIY, PLLC, complaining of the defendants herein, upon information and
belief, respectfully show to this Court, and allege as follows:

**AS AND FOR A FIRST CAUSE OF ACTION FOR ASSAULT
AND BATTERY ON BEHALF OF ELIJAH STANLEY**

1. That at all times hereinafter mentioned, plaintiff was and still is a resident of
the County of Kings, City and State of New York.
2. That all times hereinafter mentioned, the defendant, **THE CITY OF NEW
YORK**, was and still is a municipal corporation, duly organized and existing pursuant to the
laws of the State of New York.
3. That the defendant, **THE CITY OF NEW YORK**, maintains a police force
known as the **NEW YORK CITY POLICE DEPARTMENT**.
4. That prior hereto on January 23, 2024, and within the time prescribed by law,
a sworn Notice of Claim stating, among other things, the time when and place where the
injuries and damages were sustained, together with plaintiffs demands for adjustment or

payment thereof, and that thereafter the **CITY OF NEW YORK** refused or neglected for more than **(30)** days and up to the commencement of this action to make any adjustment or payment thereof, was served and that thereafter, and within the time provided by law, this action was commenced.

5. That on September 18, 2024, pursuant to the General Municipal Law, a statutory 50-H hearing of plaintiff was held.

6. That on November 3, 2023, and at all times hereinafter mentioned and upon information and belief, the defendant, **THE CITY OF NEW YORK**, employed **POLICE OFFICER JAMES O'BRIEN (TAX ID # 976308)**, **POLICE OFFICER DENIZ ONUT (TAX ID # 975912)** and **POLICE OFFICERS JOHN & JANE DOES #1-10**, as police officers, agents, servants and/or employees.

7. That on November 3, 2023, and at all times hereinafter mentioned and upon information and belief, the plaintiff, **ELIJAH STANLEY**, was lawfully present in front of the premises known as 1840 Nostrand Avenue, in the County of Kings, City and State of New York.

8. That on November 3, 2023, and at all times hereinafter mentioned and upon information and belief, the plaintiff, **ELIJAH STANLEY**, was assaulted and battered by defendants, **POLICE OFFICER JAMES O'BRIEN (TAX ID # 976308)**, **POLICE OFFICER DENIZ ONUT (TAX ID # 975912)** and **POLICE OFFICERS JOHN & JANE DOES #1-10**, who were acting within the scope of their employment with the defendant, **THE CITY OF NEW YORK**, at the aforesaid premises.

9. That on November 3, 2023, and at all times hereinafter mentioned and upon information and belief, the aforementioned assault and battery was performed knowingly, intentionally and willfully.

10. That on November 3, 2023, and at all times hereinafter mentioned and upon information and belief, the defendants, **POLICE OFFICER JAMES O'BRIEN (TAX ID #**

976308), POLICE OFFICER DENIZ ONUT (TAX ID # 975912) and POLICE OFFICERS JOHN & JANE DOES #1-10, who committed the aforementioned assault and battery upon the plaintiff, **ELIJAH STANLEY**, were acting within the scope of their employment with the defendant, **THE CITY OF NEW YORK**.

11. That on November 3, 2023, and at all times hereinafter mentioned and upon information and belief, the assault and battery on the plaintiff was without probable cause and was not the result of an appropriate arrest.

12. By reason of said assault and battery the plaintiff was caused to suffer severe and serious injuries in and about diverse parts of the person, and suffered great pain, distress, mental shock, mental anguish and psychological trauma and was otherwise injured.

13. By the reason of the foregoing, the plaintiff, **ELIJAH STANLEY**, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A SECOND CAUSE OF ACTION FOR NEGLIGENT
HIRING AND RETENTION ON BEHALF OF ELIJAH STANLEY**

14. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "13" inclusive with the same force and effect as if more fully set forth at length herein.

15. That the defendant, **THE CITY OF NEW YORK**, did not exercise reasonable care and diligence in the selection, engagement, employment and training of their police officers, agents, servants, and employees and were negligent in the hiring, training and retention of the defendants, **POLICE OFFICER JAMES O'BRIEN (TAX ID # 976308), POLICE OFFICER DENIZ ONUT (TAX ID # 975912) and POLICE OFFICERS JOHN & JANE DOES #1-10**, who assaulted, battered and violated the civil rights of the plaintiff, **ELIJAH STANLEY**.

16. That the defendant, **THE CITY OF NEW YORK**, had prior knowledge of the inappropriate, unlawful, and improper conduct of the defendants, **POLICE OFFICER JAMES**

O'BRIEN (TAX ID # 976308), POLICE OFFICER DENIZ ONUT (TAX ID # 975912) and POLICE OFFICERS JOHN & JANE DOES #1-10, and continued to employ them and allowed them to be in contact with the public at large.

17. By the reason of the foregoing, the plaintiff, **ELIJAH STANLEY**, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A THIRD CAUSE OF ACTION FOR FALSE
ARREST ON BEHALF OF ELIJAH STANLEY**

18. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "17" inclusive with the same force and effect as if more fully set forth at length herein.

19. That on November 3, 2023, and at all times hereinafter mentioned and upon information and belief, defendants, **POLICE OFFICER JAMES O'BRIEN (TAX ID # 976308), POLICE OFFICER DENIZ ONUT (TAX ID # 975912) and POLICE OFFICERS JOHN & JANE DOES #1-10**, were working within the scope of their employment and authority with the defendant, **THE CITY OF NEW YORK**, when they arrested and confined the plaintiff, **ELIJAH STANLEY**.

20. That on November 3, 2023, and at all times hereinafter mentioned and upon information and belief, the arrest and confinement was without probable cause nor based on reasonable grounds and not founded upon an arrest warrant.

21. That as a result of the aforesaid false'.' arrest and confinement, plaintiff, **ELIJAH STANLEY**, sustained serious permanent personal injuries along with humiliation, shame, indignity, damage to reputation and credit and suffered emotional and physical distress, emotional distress and injuries.

22. By the reason of the foregoing, the plaintiff, **ELIJAH STANLEY**, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A FOURTH CAUSE OF ACTION FOR FALSE
IMPRISONMENT ON BEHALF OF ELIJAH STANLEY**

23. The plaintiff repeats and realleges each and every allegation set forth above numbered “1” through “22” inclusive with the same force and effect as if more fully set forth at length herein.

24. That on November 3, 2023, and at all times hereinafter mentioned and upon information and belief, defendants, **POLICE OFFICER JAMES O’BRIEN (TAX ID # 976308), POLICE OFFICER DENIZ ONUT (TAX ID # 975912) and POLICE OFFICERS JOHN & JANE DOES #1-10**, were acting within the scope of their employment when they, without justification and without probable cause, imprisoned the plaintiff.

25. That the defendants, **POLICE OFFICER JAMES O’BRIEN (TAX ID # 976308), POLICE OFFICER DENIZ ONUT (TAX ID # 975912) and POLICE OFFICERS JOHN & JANE DOES #1-10**, while acting within the scope of their employment, intentionally confined the plaintiff against his will and said confinement was not privileged.

26. By the reason of the foregoing, the plaintiff, **ELIJAH STANLEY**, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A FIFTH CAUSE OF ACTION FOR INTENTIONAL
AND NEGLIGENT INFLICTION OF EMOTIONAL
DISTRESS ON BEHALF OF ELIJAH STANLEY**

27. The plaintiff repeats and realleges each and every allegation set forth above numbered “1” through “26” inclusive with the same force and effect as if more fully set forth at length herein.

28. That the defendant, **THE CITY OF NEW YORK**, including but not limited to **POLICE OFFICER JAMES O’BRIEN (TAX ID # 976308), POLICE OFFICER DENIZ ONUT (TAX ID # 975912) and POLICE OFFICERS JOHN & JANE DOES #1-10**, acted intentionally, recklessly and with utter disregard to the consequences of their actions and caused

severe emotional distress to the plaintiff through their actions.

29. Said actions exceeded all reasonable bounds of decency, were outrageous and shocking and resulted in severe emotional distress to the plaintiff, **ELIJAH STANLEY**.

30. That as a result of said intentional and negligent acts, the plaintiff, **ELIJAH STANLEY**, become sick, sore, lame and disabled, received severe and serious injuries in and about diverse parts of his person and suffered great physical pain, distress, mental shock, mental anguish and psychological trauma and was otherwise injured.

31. By reason of the foregoing, the plaintiff, **ELIJAH STANLEY**, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A SIXTH CAUSE OF ACTION FOR MALICIOUS
PROSECUTION ON BEHALF OF ELIJAH STANLEY**

32. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "31" inclusive with the same force and effect as if more fully set forth at length herein.

33. That on November 3, 2023, and at all times hereinafter mentioned and upon information and belief, defendants, **POLICE OFFICER JAMES O'BRIEN (TAX ID # 976308)**, **POLICE OFFICER DENIZ ONUT (TAX ID # 975912)** and **POLICE OFFICERS JOHN & JANE DOES #1-10**, within the scope of their employment, without justification, without probable cause, created and submitted an erroneous police report in an effort to cover up the aforesaid and initiate a prosecution in bad faith.

34. That on November 3, 2023, and at all times hereinafter mentioned and upon information and belief, defendants, **POLICE OFFICER JAMES O'BRIEN (TAX ID # 976308)**, **POLICE OFFICER DENIZ ONUT (TAX ID # 975912)** and **POLICE OFFICERS JOHN & JANE DOES #1-10**, were acting within the scope of their employment, maliciously prosecuted the plaintiff, **ELIJAH STANLEY**.

35. That on November 3, 2023, and at all times hereinafter mentioned and upon information and belief, as a result of the aforesaid malicious prosecution, plaintiff, **ELIJAH STANLEY**, sustained serious, permanent, personal injuries along with humiliation, shame, indignity, damage to reputation and credit, legal fees, loss of employment opportunities and suffered emotional and physical distress and injury.

36. By reason of the foregoing, plaintiff, **ELIJAH STANLEY**, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A SEVENTH CAUSE OF ACTION FOR CIVIL
RIGHTS VIOLATION ON BEHALF OF ELIJAH STANLEY**

37. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "36" inclusive with the same force and effect as if more fully set forth at length herein.

38. The defendant, **THE CITY OF NEW YORK**, through policies, practices and customs, directly caused the constitutional violation suffered by plaintiff, **ELIJAH STANLEY**.

39. The defendant, **THE CITY OF NEW YORK**, through its police department, has had and still has hiring practices that it knows will lead to the hiring of the police officers, including but not limited to **POLICE OFFICER JAMES O'BRIEN (TAX ID # 976308)**, **POLICE OFFICER DENIZ ONUT (TAX ID # 975912)** and **POLICE OFFICERS JOHN & JANE DOES #1-10**, lacking the intellectual capacity and moral fortitude to discharge their duties in accordance with the constitution and is indifferent to the consequences.

40. The defendant, **THE CITY OF NEW YORK**, through its police department, has de facto quota policy that encourages unlawful stops, unlawful searches, false arrests, the fabrication of evidence and perjury.

41. The defendant, **THE CITY OF NEW YORK**, at all relevant times, was, upon information and belief, aware that these individual defendants, including but not limited to

POLICE OFFICER JAMES O'BRIEN (TAX ID # 976308), POLICE OFFICER DENIZ ONUT (TAX ID # 975912) and POLICE OFFICERS JOHN & JANE DOES #1-10, routinely commit constitutional violations such as those at issue here and has failed to change its policies, practices and customs to stop this behavior.

42. The defendant, **THE CITY OF NEW YORK**, at all relevant times, was aware that these individual defendants, including but not limited to **POLICE OFFICER JAMES O'BRIEN (TAX ID # 976308), POLICE OFFICER DENIZ ONUT (TAX ID # 975912) and POLICE OFFICERS JOHN & JANE DOES #1-10**, are unfit officers who have previously committed the acts alleged herein and/or have a propensity for unconstitutional conduct.

43. As a direct and proximate result of this unlawful conduct, the plaintiff, **ELIJAH STANLEY**, sustained the damages hereinbefore alleged.

**AS AND FOR AN EIGHTH CAUSE OF ACTION FOR
PUNITIVE DAMAGES ON BEHALF OF ELIJAH STANLEY**

44. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "43" inclusive with the same force and effect as if more fully set forth at length herein.

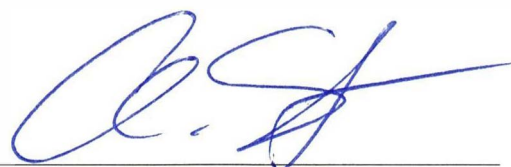
45. The actions of the defendants herein-above alleged, were malicious, willful and grossly negligent.

46. That the defendant, **THE CITY OF NEW YORK**, authorized, permitted and ratified the unlawful and negligent acts of their agents, servants and/or employees, including but not limited to **POLICE OFFICER JAMES O'BRIEN (TAX ID # 976308), POLICE OFFICER DENIZ ONUT (TAX ID # 975912) and POLICE OFFICERS JOHN & JANE DOES #1-10**, herein-above alleged.

47. By the reason of the foregoing, the plaintiff, **ELIJAH STANLEY**, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

WHEREFORE, plaintiff, **ELIJAH STANLEY**, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **First** Cause of Action; plaintiff, **ELIJAH STANLEY**, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Second** Cause of Action; plaintiff, **ELIJAH STANLEY**, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Third** Cause of Action; plaintiff, **ELIJAH STANLEY**, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Fourth** Cause of Action; plaintiff, **ELIJAH STANLEY**, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Fifth** Cause of Action; plaintiff, **ELIJAH STANLEY**, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Sixth** Cause of Action; plaintiff, **ELIJAH STANLEY**, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Seventh** Cause of Action; plaintiff, **ELIJAH STANLEY**, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Eighth** Cause of Action; together with attorneys' fees, and the costs and disbursements of this action.

Dated: Brooklyn, New York
December 2, 2024



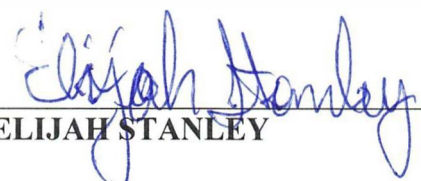
ALEXANDER STEPANKOVSKIY, ESQ.
LAW OFFICE OF
ALEXANDER STEPANKOVSKIY, PLLC
Attorney for Plaintiff **ELIJAH STANLEY**
44 Court Street, Suite 1217
Brooklyn, New York 11201
(718) 223-5531

VERIFICATION

STATE OF NEW YORK)
 ss.:
COUNTY OF KINGS)

ELIJAH STANLEY, being duly sworn, deposes and says that deponent is the above-named claimant; deponent has read the foregoing **COMPLAINT** and knows its contents; the same is true to deponent's knowledge, except as to those matters stated to be alleged upon information and belief, and as to those matters deponent believes it to be true.

Dated: Brooklyn, New York
December 2, 2024



ELIJAH STANLEY

Sworn to before me this 2nd
day of December, 2024



NOTARY PUBLIC

JULIA GUZ
NOTARY PUBLIC STATE OF NEW YORK
KINGS COUNTY
LIC. #01GU6301768
COMM. EXP. 06/03/2026

Index No.

SUPREME COURT OF THE STATE OF NEW YORK
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Plaintiff,

-against-

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JAMES O'BRIEN (TAX ID # 976308), POLICE OFFICER DENIZ ONUT (TAX ID # 975912)
and POLICE OFFICERS JOHN & JANE DOES #1-10,

Defendants.

SUMMONS and VERIFIED COMPLAINT

**LAW OFFICE OF
ALEXANDER STEPANKOVSKIY, PLLC**

Attorney for Plaintiff

ELIJAH STANLEY

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